LOAN AGREEMENT

This Loan Agreement (this "**Agreement**") is made on the date on which the Borrower has executed this Agreement at Kolkata:

1. **Yes Bank Limited**, a company incorporated under the provisions of the Companies Act, 1956 registered as a scheduled commercial bank with the Reserve Bank of India, and having its registered office at YES BANK Limited, YES BANK House, Off Western Express Highway, Santacruz (East), Mumbai - 400 055, and acting for the purposes of this Agreement through its branch office at YES BANK Limited, 5th Floor, Technopolis Building, Plot No BP 4, Sector -V, Bidhannagar, Dist North 24 Parganas, Kolkata 700091, West Bengal (hereinafter referred to as "**Lender 1**" or "**Yes Bank**" which expression shall unless be repugnant to the context or meaning thereof include its successors and permitted assigns);

AND

2. **Newtap Finance Private Limited** (previously known as Parfait Finance and Investments Private Limited), a non-banking financial company registered with the Reserve Bank of India, having PAN AACCP3655M, its registered office at Office 03A 102-B, WeWork (Enam Sambhav), C-20, G Block Rd, G Block BKC, Bandra Kurla Complex, Bandra East, Mumbai, Maharashtra, India – 400051 and acting for the purposes of this Agreement through its office at Regus, Globsyn Crystal, XI-11 & 12 Block EP, Sector -V, Salt Lake City, Ground & First Floor, District North 24 Parganas, Kolkata, 7000091, West Bengal (hereinafter referred to as "**Lender 2**" or "**Newtap**" which expression shall unless be repugnant to the context or meaning thereof include its successors and permitted assigns);

AND

3. The person described and as stated in **SCHEDULE 1** (hereinafter referred to as the "**Borrower**" which expression shall unless be repugnant to the context or meaning thereof include its successors and permitted assigns).

Lender 1 and Lender 2 are hereinafter individually referred to as the "**Lender**" and collectively as the **"Lenders**". The Lenders and the Borrower are individually referred to as "**Party**" and collectively as "**Parties**".

WHEREAS

1. The Lenders have appointed Dreamplug Technologies Private Limited, a company registered under Indian Companies Act, 2013 with registered office at 404 Uphar II CHS Ltd., Plot No.5, BHD Sanjeeva ENCL, 7 Bunglows, Near Juhu Circle, Mumbai, Maharashtra, India 400061 and having its corporate office at CRED, No. 769 and 770, 100 Feet Road, 12th Main, HAL 2nd Stage, Indiranagar, Bengaluru, Karnataka – 560038 (hereinafter "**CRED"**) as their lending service provider and direct sales agent to offer personal loans provided by the Lenders to the users of its CRED App.

2. The Borrower wishes to avail a personal loan and has applied for the same to the Lenders via the CRED App.

3. Relying upon the representations made by the Borrower, the Lenders have agreed to make available a Loan to the Borrower, as requested through CRED App upon the terms and conditions mentioned in this Agreement.

NOW THIS AGREEMENT WITNESSES AS FOLLOWS.

1. DEFINITIONS

1.1 In this Agreement unless the context otherwise requires:

"**Applicable Law**" means and includes any statute, law, regulation, ordinance, rule, judgment, rule of law, order, decree, clearance, approval, directive, guideline, policy, requirement or other governmental restriction or any similar form of decision or determination by or any interpretation or administration of any of the foregoing by any statutory or regulatory authority, whether in effect as of date of this Agreement or thereafter and in each case as amended from time to time.

"**Business Day**" means a day which is not a Sunday or a public holiday for the purposes of Section 25 of the Negotiable Instruments Act, 1881 and on which the banks are open for ordinary course of business in Kolkata, India.

"CRED App" means the technology platform offered by CRED, through a mobile application.

"Designated Bank Account" means the bank account of the Borrower verified in the CRED App during the Loan journey and in respect of which NACH mandate has been set up.

"Direct Sales Agent" shall have the meaning ascribed to it under the RBI Directions.

"**EPI**" means the equated amount of periodic payment specified in Schedule 1, necessary to amortize the Loan with interest, over the period of the Loan.

"Event of Default" shall have the meaning ascribed to it in Clause 7.1.

"**Final Settlement Date**" means the date on which all the Outstanding Dues under the Agreement have been irrevocably and unconditionally paid and discharged in full by the Borrower, to the satisfaction of the Lenders.

"**Key Facts Statement**" shall have the meaning ascribed to it under the RBI Directions.

"**Loan/Facility**" means a personal loan sanctioned by the Lenders to the Borrower under this Agreement.

"**NACH Mandate**" has the meaning ascribed to such term in Clause 5.2.

"**Outstanding Dues**" means, at any time, all the amounts outstanding and payable by the Borrower to the Lenders, pursuant to the terms of this Agreement, including but not limited to the following:

(a) the principal amount(s) of the Loan;

(b) the interest on the Loan; and

(c) all other obligations and liabilities of the Borrower including penal charges, fees and charges, expenses and indemnities incurred under, arising out of or in connection with this Agreement.

2. APPOINTMENT OF LENDING SERVICE PROVIDER / DIGITAL LENDING APP

The Parties agree and acknowledge that CRED has been appointed as a 'direct sales agent', 'outsourced service provider', 'lending service provider' and 'digital lending app' operator in accordance with RBI's Directions on Managing Risks and Code of Conduct in Outsourcing of Financial Services by NBFCs (RBI/2017-18/87, DNBR.PD.CC.No.090/03.10.001/2017-18) and Guidelines on Digital Lending (RBI/2022-23/111 DOR.CRE.REC.66/21.07.001/2022-23) ("**RBI Directions**") to source customers for the Lenders, allow customers to apply for loans from the Lenders using the CRED App, and to assist the Lenders by providing debt recovery services to the Lenders.

3. LOAN DETAILS

3.1 **Key Facts Statement:** As mandated by the Reserve Bank of India, the Key Facts Statement has been displayed to the Borrower while applying for the Loan on the CRED App and it is also appended to this Agreement in Schedule 2.

3.2 **Amount:** Pursuant to the application made by the Borrower through the CRED App, the Lenders have agreed to grant the Loan to the Borrower of sum, as stated in Schedule 1 of this Agreement on the terms and conditions set forth in this Agreement.

3.3 **Term:** The Loan provided under this Agreement shall be for a period as specified in Schedule 1 of this Agreement.

3.4 **Interest:** The rate of interest shall be as set out in Schedule 1 of this Agreement. The rate of interest shall remain fixed unless required to be varied by the Lenders in accordance with Applicable Law.

3.5 **Penal Charges:** Upon occurrence of any Event of Default, *inter alia,* penal charges as set out in Schedule 1 (if any) shall be additionally payable by the Borrower.

3.6 **Fees and Charges:** Fees and charges shall be as set out in Schedule 1 of this Agreement.

3.7 The Lenders shall provide notice to the Borrower in accordance with Clause 12 in case of any changes in the terms and conditions of this Agreement, including disbursement schedule, interest rates, service charges, prepayment charges etc.

4. DISBURSEMENT AND FREE LOOK PERIOD

4.1 The amount as set out in the Key Facts Statement shall be disbursed to the Borrower in the Designated Bank Account by way of an electronic credit which may be using Real Time Gross Settlement (RTGS), National Electronic Fund Transfer (NEFT), or Immediate Payment Service (IMPS). For avoidance of doubt, it is clarified that Lenders shall disburse the loan amount after deducting the processing fee, insurance charges and cross-sell charges (as applicable).

4.2 A period of 3 (three) days from the date of disbursal shall be the free look period ("**Free-Look Period**"). If the Borrower believes that it has availed the Loan without intending to do so, the Borrower may repay the Loan and the proportionate annualised percentage interest rate for the Free Look Period and close the Loan without any pre-payment charges. The Borrower may do so by sending an email to support@cred.club, support@newtap.in, or to Yes Bank at the details of the grievance redressal officer mentioned in the Key Facts Statement.

5. REPAYMENTS

5.1 **Manner of Repayment:** The Borrower agrees and undertakes to repay the Loan in EPIs as per the repayment schedule set out in Schedule 1.

5.2 **Mandate Set-Up:** Prior to entering into this Agreement, the Borrower shall have set up an e-NACH mandate as a part of the customer journey on the CRED App, to allow automatic transfer from the Designated Bank Account of the EPI amount on each EPI date as set out in Schedule 1. The Borrower agrees and acknowledges that: (i) the debit frequency specified shall be as "As and when presented"; (ii) debit type specified shall be as "Maximum"; (iii) period of mandate shall be specified with an identified date at the discretion of the Lenders. The Borrower agrees and acknowledges that CRED (on the instructions of the Lenders) and/or the Lenders shall present / exercise the e-NACH Mandate to recover equated instalments as well as Outstanding Dues and any other amounts that are due from the Borrower pursuant to or otherwise.

The Borrower understands, confirms and agrees that CRED and/or the Lenders shall, at its sole discretion, at multiple occasions and on different dates, present in the Borrower's Designated Bank Account, the e-NACH mandate which returns unpaid, for recovering the equated periodic instalments and/or the Outstanding Dues from the Borrower and until realization of all Outstanding Dues. The Borrower agrees and undertakes that the Borrower shall not dispute, complain or object to such presentations by CRED and/or the Lenders.

5.3 **Obligation to Maintain Funds:** Borrower shall be solely responsible to ensure that adequate funds are maintained in the Borrower's Designated Bank Account to allow for the EPI amount and/or Outstanding Dues to be deducted using the e-NACH mandate. The Borrower agrees and acknowledges that any e-NACH bounce, rejection for inadequate funds or failure to pay the EPI when due may result in an Event of Default and shall attract the consequences of an Event of Default in accordance with this Agreement.

5.4 **Borrower acknowledgements in relation to repayments**: The Borrower acknowledges. that:

(a) Strict compliance by the Borrower with the repayment schedule is an essential condition for the grant of the Loan;

(b) No notice, reminder or intimation shall be given by the Lenders to the Borrower prior to the presentation of the e-NACH mandate;

(c) Non-presentation of the e-NACH mandate by the Lenders due to any reason whatsoever will not affect the liability of the Borrower to repay the Loan; and

(d) Without prejudice to any other rights or remedies the Lenders may have under this Agreement and / or under the Applicable Law, the Borrower shall be liable to pay a flat charge as stated in the Schedule 1 in case of dishonor of the Instruments on the first presentation. The levy of such charge upon dishonouring of the Instruments is without prejudice to the rights of Lenders under the Payment and Settlement Systems Act, 2007 as amended and as in force for the time being, and without prejudice to the other rights, which the Lenders have under this Agreement or under Applicable Law or equity.

5.5 **Pre-payments / Foreclosures**: The Borrower may also: (i) pay an EPI in advance; or (ii) foreclose the Loan by paying the entire Outstanding Dues – by making the necessary payment to the Lenders using the CRED App. In such cases pre-payment charges / foreclosure charges (if any) set out in Schedule 1 shall be payable by the Borrower. It is hereby clarified that in case of any prepayment by the Borrower, the Borrower shall at all times repay the Outstanding Dues along with applicable interest up to the date of prepayment in addition to the pre-payment charges / foreclosure charges (if any).

5.6 **Appropriation of Payments:** The Lenders shall have a right to appropriate any payments due and payable under this Agreement and made by the Borrower towards dues in the order the Lenders deems fit, towards the principal, interest, default interest (if any), prepayment charges (if any), other charges, expenses or other Outstanding Dues payable in relation to the Loan, at their sole discretion. Notwithstanding anything stated herein, the Lenders retains the right to modify the manner of appropriation of the payments received from the Borrower at any time at their sole discretion and in the manner they deem fit. Notwithstanding any such appropriation, the Borrower shall continue to remain liable to Lenders for all the Outstanding Dues until the Final Settlement Date.

5.7 **Loan Repayable on demand:** Notwithstanding anything else in this Agreement, the Lenders may at any time by giving 7 (seven) days' prior notice and without assigning any reason demand immediate payment of the entire Outstanding Dues under the Loan in full, together with all accrued but unpaid interest, fees and charges relating to the Loan.

6. COLLECTIONS

6.1 The Lenders have appointed CRED as the lending service provider to assist the Lenders with debt counselling and recovery.

6.2 Parties agree and acknowledge that CRED and / or the Lenders may appoint subcontractors who may reach out to the Borrower through various means to discuss repayment of the Loan (including but not limited to telephone calls, SMS, whatsapp chats, physical visits and email) notwithstanding any registration with "National Do Not Call Registry" (the "NDNC Registry") as laid down by Telecom Regulatory Authority of India. The agents who reach out shall comply with the code of conduct specified by the Lenders and / or CRED.

6.3 The service providers who provide collections related services shall be listed on the website of the Lenders and the Lenders shall ensure that they comply with the code of conduct of the Lenders and the Applicable Law.

7. EVENT OF DEFAULTS

7.1 An Event of Default shall be deemed to have occurred if any one of the below events or a combination of them occurs:

(a) The Borrower fails to repay any particular EPI, in accordance with the Repayment Schedule set out in Schedule 1 of this Agreement when it is due;

(b) There has been a dishonour of e-NACH mandate or any instrument provided by the Borrower in relation to payment of any EPI or any Outstanding Dues in relation to the Loan;

(c) The Borrower dies or takes any steps or any steps are taken with a view to his being made insolvent or files for bankruptcy or acts with a view to the appointment of a receiver, trustee or similar officer for his/ her assets, or is declared insolvent or bankrupt under Applicable Laws;

(d) Regardless of the reason thereof, Borrower instructs its bankers for stopping payment of the e-NACH mandate or any instrument provided by the Borrower in relation to payment of any EPI or any Outstanding Dues in relation to the Loan;

(e) Any information given or representations made by the Borrower to the Lenders under this Agreement or any other documents submitted by the Borrower is found to be inaccurate or misleading;

(f) The Borrower is declared to be a willful defaulter;

(g) The Borrower becomes a sanctioned person under sanctions imposed by any government of any nation or by a multilateral body such as the EU or the UNSC;

(h) The Borrower fails to discharge any indebtedness with any person (including the Lenders) which has become due and payable, or the Borrower is deemed for the purposes of any Applicable Law to be unable to pay his/her debts as they fall due or the Borrower admits in writing to be unable to pay his/her debts as they fall due, or the Borrower begins negotiations with any creditor for the rescheduling or restructuring of any of the Borrower's indebtedness;

(i) The providing of Loan is no longer in accordance with the Applicable Law, or the Agreement is not effective in accordance with its terms or is alleged by the Borrower to be ineffective in accordance with its terms for any other reason or it is or it becomes unlawful for the Borrower to perform any of its obligations under the Loan documents;

(j) The Borrower fails to perform any of the obligations or terms or conditions or covenants applicable in relation to the Loan including a breach of the provisions under this Agreement; or

(k) The Borrower utilizes the Loan towards any purpose or activity other than for personal purposes.

7.2 The Borrower shall promptly notify the Lenders in writing upon becoming aware of any of the Events of Default and the steps, if any, being taken to remedy it. The Lenders may in their sole discretion determine whether or not an Event of Default has occurred, and such decision of the Lenders shall be final and binding upon the Borrower. A certificate / notice in writing signed by an officer of any of the Lenders stating the amount at any particular time due shall be conclusive evidence against the Borrower of any Outstanding Dues payable under the Agreement.

7.3 In the event of occurrence of any Event of Default, the Lenders may, in their discretion, without requiring any consent or confirmation from the Borrower and without prejudice to any other rights available, take one or more of the following actions including but, not limited to:

(a) recall the Loan and declare the Outstanding Dues immediately due and payable by the Borrower;

(b) present and appropriate the proceeds of the e-NACH mandate given by the Borrower to the Lenders under this Agreement, for all such times that the Outstanding Dues are repaid;

(c) require the Borrower to pay liquidated damages equal to all unpaid EPIs which in the absence of an Event of Default would have been payable by the Borrower for the full term hereof;

(d) exercise their right of set-off against any monies due to the Lenders from the Borrower and to combine all the accounts of the Borrower held with each of the Lenders to recover the Outstanding Dues from the Borrower;

(e) publish the name of the Borrower as defaulter in such form and manner and through such medium as the Lenders may in their sole discretion may think fit and also inform other lenders of the Borrower about such default by the Borrower and to make disclosure of the details pertaining to the Borrower any credit information companies and authorities; and

(f) seek indemnification in respect of all legal and other costs and expenses resulting from the defaults by the Borrower or the exercise of remedies by the Lenders.

8. BORROWER REPRESENTATIONS AND WARRANTIES

8.1 The Borrower hereby makes the following representations and warranties and states that the same shall remain true, correct, valid and subsisting at all times in every respect as of the date of this Agreement, and as on each day until the Final Settlement Date:

a) The Borrower has adequate legal capacity to enter into and execute this Agreement. The Borrower is not restricted in any manner or prevented in any manner under any Applicable Laws or otherwise from executing and undertaking the obligations as provided in this Agreement. Upon execution, this Agreement shall be a valid legally binding commitment of the Borrower enforceable against the Borrower on the terms set out herein;

b) There are no suits, actions or claims pending or are likely to be filed or taken (whether civil or criminal or otherwise) against the Borrower of any nature whatsoever which shall make it illegal for the Borrower to avail the Loan or otherwise effectively perform its obligations under this Agreement;

c) There is no Event of Default, subsisting hereunder or under any other agreement binding the Borrower including any payment or other contractual obligations or otherwise, whether existing or expected to arise pursuant to the availing of Loan. There are no circumstances subsisting at the time of execution of this Agreement which are likely to result in the occurrence of an Event of Default during the term of the Loan;

d) Borrower's household income, that is to say, the annual income of the Borrower's family unit, i.e., husband, wife, and unmarried children, is more than INR 3,00,000 (Indian Rupees Three Lakhs Only) and therefore the Borrower's borrowing of the Loan does not qualify to be a microfinance loan under the Reserve Bank of India (Regulatory Framework for Microfinance Loans) Directions, 2022;

e) The Borrower understands English, and the Borrower has fully understood and accepted the terms of: (i) this Agreement; (ii) terms and conditions of CRED; (iii) the Key Facts Statement; (iv) the sanction letter, and (v) any other information displayed during the loan journey on the CRED App; and

f) Neither the Borrower, nor any person acting on his/her behalf, has been engaged.

i. corrupt practices, fraudulent practices, collusive practices or coercive practices;
ii. money laundering or acted in breach of any Applicable Laws relating to money laundering; or
iii. the financing of terrorism

9 COVENANTS / UNDERTAKINGS OF THE BORROWER

9.1 The Borrower agrees and undertakes that the Borrower shall:

(a) utilize the entire Loan solely for personal purposes and not utilize any part of the monies so borrowed for any illegal purpose, or towards immoral / unethical practices;

(b) promptly notify the Lenders of any event or circumstances, which may delay compliance with any terms hereof or may result in an Event of Default;

(c) maintain sufficient balance in the account of the drawee bank for payment of the instruments if presented.

(d) indemnify and hold harmless, and agrees to keep indemnified and hold harmless the Lenders, from time to time and at all times hereafter, against any and all claims, losses, costs, damages, liabilities, losses and expenses (including all legal costs and attorney fees) that may be incurred by the Lenders on account of any act or default on the part of the Borrower in respect of the Loan, the non-performance of or non-observance of any of the terms and conditions stipulated under this Agreement or due to occurrence of an Event of Default or a potential Event of Default in relation to the Loan and/or for the recovery of the Outstanding Dues under this Agreement;

(e) immediately intimate CRED and the Lenders in respect of any change in the contact details, residential, or any other details as intimated to CRED or the Lenders; Borrower further agrees and acknowledges that in the event the Borrower is not contactable at the registered contact details and/or address, then the Lenders and/or CRED shall be at liberty (either directly or through subcontractors) to carry out skip tracing of the Borrower in order to determine the Borrower's whereabouts and contact details;

(f) not, without the prior, specific, and express written consent (which may be conditional or otherwise) of both the Lenders, close the Designated Bank Account;

(g) not assign, transfer, or novate any or all of its rights and/or obligations under this Agreement in favour of any person;

(h) not appoint, engage or authorize any third party to deal with the Lenders or CRED and/or any other lending service provider in respect of the Loan under this Agreement; and

(i) if there are any changes in the particulars and information given by Borrower while availing the Loan facility, Borrower shall within 30 days from the date of any such change in the particulars and information shall disclose the details of such changes to the Bank without withholding the same.

9.2 The Borrower represents that the Borrower is not a politically exposed person (PEP) and that the Know Your Customer details provided by the Borrower are correct. The Borrower further agrees and acknowledges that the Borrower shall inform both CRED and the Lenders in the event of any change in its PEP status or change in the details provided as part of Know Your Customer checks.

9.3 The Borrower expressly understands that the Lenders and/or CRED shall be under no obligation to entertain any third-party request regarding any discussion, negotiation or settlement of the Loan.

9.4 The Borrower agrees and acknowledges that they have read and understood the terms of **Schedule 3** and agrees to abide by the same.

9.5 The Borrower further agrees and acknowledges that by applying for the Loan:

(a) the Borrower has expressly and irrevocably authorized the Lenders and CRED to collect, store, share, obtain (including if necessary through agencies providing skip tracing services) and authenticate any aspect of his personal information / KYC either directly or through any of the authorized agencies and disclose such information to its agents/contractors/service providers/Lenders and to also use and / or process such information in the manner that may be required by the Lenders and CRED including for the purposes of this Loan and for such time period as they may deem fit. Borrower further agrees and acknowledges that even after the repayment of the Loan or termination of this Agreement in any other manner, the Lenders may continue to store/ use (and share with third parties to the extent necessary) all information provided as a part of the application for the Loan, as well as the information in relation to the terms of the Loan and the manner of its repayment;

(b) the Borrower consents, agrees and acknowledges that the Lenders, CRED and their agents or subcontractors may at any time communicate with the Borrower in relation to the recovery of the Loan through any channel (including but not limited to telephone call, SMS, whatsapp, physical visits and email) notwithstanding any registration with NDNC Registry as laid down by Telecom Regulatory Authority of India;

(c) the Loan (and its terms as provided in the sanction letter and hereunder) is being offered by the Lenders based on the income and segment and other data of the Borrower categorised as per the Lenders' internal policies, and using the data that the Borrower had expressly and irrevocably authorized the Lenders and CRED to collect, store, share, and obtain as per the terms and conditions of CRED (available on the CRED App and the CRED website). To refer to CRED's privacy policy,please click here

(d) the Loan is being provided pursuant to a co-lending arrangement between the Lenders, and the Lenders have collaborated under this co-lending arrangement to provide a blended rate of interest to the Borrower for this Loan.

10 ASSIGNMENT / SECURITISATION

10.1 The Borrower expressly recognizes and accepts that each Lender shall be absolutely entitled and have full power and authority to sell, assign, hypothecate, encumber (by way of creating a charge over receivables or otherwise) or transfer in any manner, in whole or in part, and in such manner and on such terms as such Lender may decide (including reserving a right to the Lenders to retain its power hereunder to proceed against the Borrower on behalf of the purchaser, assignee or transferee) any or all rights, benefits, or obligations under this Agreement (including any Outstanding Dues of the Borrower), to any person of such Lender's choice (including the other Lender) without reference to or without written intimation to the Borrower.

10.2 Any such action and any such sale, assignment or transfer shall not absolve the Borrowers' liabilities under this Agreement and shall conclusively bind the Borrower to accept such transferee as creditor exclusively or as a joint creditor with one or both of the Lenders, or as creditor exclusively with right to the Lenders to continue to exercise all powers hereunder on behalf of such third party and to pay over such Outstanding Dues and dues to such third party and / or to the Lenders as the Lenders may direct. The Borrower acknowledges and undertakes to pay to such third party all amounts due hereunder as required. The third party shall have authority of the Lenders to collect the due amounts.

10.3 The Borrower shall not be entitled to directly or indirectly assign any of its rights, obligations, or benefits under this Agreement to any person.

11. SET-OFF AND LIEN

11.1 Notwithstanding anything contained in this Agreement, the Lenders shall have a lien, irrespective of any other lien or charge over the deposits of any kind and nature, or balances lying in any account maintained by the Borrower with any of the Lenders (if any) and a right of set off against any monies due to the Lenders from the Borrower and to combine all accounts of the Borrower held with both the Lenders for recovery of the Lenders' dues hereunder.

11.2 It is hereby agreed and understood by the Borrower that, in the event of occurrence of an Event of Default or the Borrower defaulting in payment of the EPIs / charges / fees / any other amounts due, without prejudice to the right of termination, the Lenders shall have the right to set-off the amount in the Borrower's account that it may be holding with any of the Lenders or any amount due from the Lenders to the Borrower, with the amount in respect of which the default has been committed under this agreement.

12. NOTICES

12.1 All correspondence shall be addressed to the Lenders at their addresses mentioned in the description of parties appearing in the preamble to this Agreement.

12.2 Any notice, approvals, instructions, demand and other communications given or made by the Lenders (or CRED on behalf of the Lenders) shall be deemed to be duly given and served by them if sent by post, courier, registered post, electronic mail, personal delivery, short message service (SMS), other digital messaging services including Whatsapp, Facebook Messenger or by pre-paid registered mail address, courier to the Borrower's address, phone number, or email as given Schedule 1 (or at the modified address on which the Borrower obtains the Lenders' acknowledgement as hereinafter mentioned) and such notice and service shall be deemed to take effect on the 3rd (third) day following the date of posting thereof in case of normal post, courier, registered post, at the time of delivery if given by personal delivery, upon sending the electronic mail, SMS or other digital messaging services including WhatsApp or Facebook Messenger if given by electronic mail, SMS or other digital messaging services. Any notice or other communication to be sent to the Borrower shall be sent to/ made through the mailing address, e-mail ID or phone number identified in Schedule 1 hereunder. The Borrower undertakes to keep the Lenders informed at all times in writing of any change in the mailing address, email ID, phone and mobile number as provided in Schedule 1 and to obtain Lenders' written acknowledgement on the intimation given to Lenders for any such change.

13. GRIEVANCES AND COMPLAINTS

13.1 The Lenders will endeavor to prevent any inappropriate staff behavior and any complaints in respect thereof shall be addressed within 30 (thirty) days in accordance with the grievance redressal mechanism constituted by the Lenders and CRED.

13.2 The Lenders and CRED have designated a grievance redressal officer to redress the genuine grievances of the Borrower. The details of the grievance redressal mechanism and the grievance redressal officer have been provided to the Borrower in the Key Facts Statement.

13.3 In case of any grievances, the Borrower may reach out to CRED at the details set out in the Key Facts Statement. Subject to Applicable Laws, the Lenders hereby authorize CRED to address grievances of any Borrower who approaches them hereunder, and the Lenders agree to provide all necessary support and details to CRED to address such grievances. The Borrower understands that if he reaches out to Lender 1 above, Lender 1 may, at its discretion, decide to direct the Borrower to CRED or to Lender 2 for grievance redressal.

14. GOVERNING LAW, JURISDICTION, AND DISPUTE RESOLUTION

14.1 The validity, interpretation, implementation and resolution of disputes arising out of or in connection with this Agreement shall be governed by Indian law. The Parties agree that all matters arising out of this Agreement shall be subject to the exclusive jurisdiction of the courts or tribunals (as the case may be) at Kolkata, West Bengal.

14.2 All disputes and claims arising out of or in connection with this Agreement shall be resolved through arbitration in accordance with the Arbitration and Conciliation Act, 1996 through online institutional arbitration, namely, Sama, an independent Electronic-Alternate Dispute Resolution (E-ADR) Institution that will conduct the arbitration proceedings remotely on its Online Dispute Resolution (ODR) platform available at https://www.sama.live/ in accordance with the Sama Rules of Arbitration (https://www.sama.live/rules_and_procedures-2021.php) which rules are deemed to be incorporated by reference in this clause. The tribunal shall consist of sole arbitrator. The seat and place of arbitration shall be Kolkata, West Bengal. The language of the arbitration shall be English.

14.3 However, it is clarified that in the event, Sama is unable to carry out the arbitration proceedings for any reason whatsoever or if the Lenders decide to proceed with any other arbitration institution, then the Lenders shall be entitled to approach any other institute of arbitration or any other online dispute resolution forum (such institute or forum, referred to as "Institute") within India, requesting such Institute to appoint the sole arbitrator for resolving the disputes and the arbitration proceedings shall be conducted by the sole arbitrator appointed by such Institute and in accordance with the dispute resolution rules of such Institute.

14.4 The Borrower acknowledges that either Lender may initiate recovery proceedings against him, and such Lender may be acting on behalf of themselves and / or the other Lender.

15. TERM AND TERMINATION

This Agreement shall come into effect from the date of this Agreement and shall terminate only upon the Borrower making full repayment/ payment of all Outstanding Dues in relation to the Loan to the Lenders in accordance with this Agreement.

16. MISCELLANEOUS

16.1 **Amendments:** No modification or amendment of the terms of this agreement except to the revision in Rate of Interest as provided under Schedule 1 and also alteration or re-scheduling of the EPIs as provided under Schedule 1 herein and no waiver of any of the terms or conditions hereof shall be valid or binding unless made in writing and duly executed by all Parties hereto.

16.2 **Partial Invalidity:** If any provision of this Agreement or the application thereof to any person or circumstance shall be invalid or unenforceable to any extent for any reason including by reason of any law or regulation or government policy, the remainder of this Agreement and the application of such provision to persons or circumstances other than those as to which it is held invalid or unenforceable shall not be affected thereby, and each provision of the Agreement shall be valid and enforceable to the fullest extent permitted by Applicable Laws. Any invalid or unenforceable provision of this Agreement shall be replacement with a provision, which is valid and enforceable and most nearly reflects the original intent of the unenforceable provision, in a mutually agreeable manner.

16.3 **Cumulative Rights:** All remedies of Lenders under this agreement whether provided herein or conferred by statue, civil law, common law, custom, trade, or usage are cumulative and not alternative and be enforced successively or concurrently.

16.4 **Waiver:** Any delay in exercising or omission to exercise any right, power or remedy accruing to the Lenders under this agreement or any other agreement or document shall not impair any right, power or remedy and shall not be construed to be a waiver thereof or any acquiescence in any default, not shall the action or inaction of the Lenders in respect of any default, affect or impair any right, power or remedy of Lenders in respect of any other default.

16.5 **Costs and expenses:** The Borrower shall promptly on demand pay to the Lenders the amount of all the costs and expenses (legal or otherwise) incurred by the Lenders in connection with the enforcement or preservation of any rights of the Lenders under the Loan documents.

[Remainder of this page is intentionally left blank. Signature page and schedule follows.]

The Borrower confirms that they do not have any Relationship with any of YES BANK's Director/Senior Officer or any relationship with Directors of any company or its subsidiary company or its holding company or with any other Director of other Bank's, who are also on the Board of YES BANK Limited. Hence this loan agreement and all schedules thereto have been executed / accepted by the below mentioned Parties.

This loan agreement and all schedules thereto have been executed / accepted by the below mentioned Parties:

Borrower

Digitally accepted by ---------- on

Consent Mode	OTP Sent to	OTP entered on CRED App at	Device used for furnishing OTP

Newtap Finance Private Limited

Mr. Vandan Suba
(Authorised Signatory)

Yes Bank Limited #

Mr. Sachin Raut
Chief Operating Officer
(Authorised Signatory)

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SCHEDULE 1
TERMS OF THE LOAN

1.	Purpose	
2.	Date:	
3.	Borrower Details: (Name, Gender, Mobile Number, Address)	Name: Gender: Mobile Number: Email (if available): Address:
4.	KYC Details	
5.	Lender 1's Details: Name & Registered Address:	Yes Bank Limited Registered Office: YES BANK Limited, YES BANK House, Off Western Express Highway, Santacruz (East), Mumbai - 400 055. Corporate Address: Yes Bank Limited, Kosmo One (One India Bulls Park), Tower C, 3rd Floor, Ambattur Industrial Estate, Chennai, Tamil Nadu – 600053.
6.	Lender 2's Details: Name & Registered Address:	New tap Finance Private Limited (previously known as Parfait Finance and Investments Private Limited) Registered Office: Office 03A 102-B, WeWork (Enam Sambhav), C-20, G Block Rd, G Block BKC, Bandra Kurla Complex, Bandra East, Mumbai, Maharashtra 400051
7.	CRED Details – Registered address and support email	Dreamplug Technologies Private Limited Corporate Office: CRED, No. 769 and 770, 100 Feet Road, 12th Main, HAL 2nd Stage, Indiranagar, Bangalore 560038. Registered office: 404 Uphar II CHS Ltd., Plot No.5, BHD Sanjeeva ENCL, 7 Bunglows, Near Juhu Circle, Mumbai, Maharashtra, India -400061
8.	Loan Amount	
9.	Loan Reference Number	
10.	Applicable Rate of Interest*	
11.	Penal charges	
12.	Insurance Charges	
13.	Cross-sell Charges	
14.	Payment frequency	
15.	Tenure	

16.	EMI amount	
17.	EMI Date (Due date(s) of repayment)	
18.	Processing Fee / Charges	
19.	Late Payment Fee	
20.	NACH / e-NACH Bounce Fee	

*This rate of interest is arrived through the Lenders' interest rate model which takes into account relevant factors such as cost of funds, margin, risk premium, contribution of each Lender to the Loan amount, etc. We take a comprehensive approach to the gradation of risk that does not discriminate between classes of Borrowers, but rather tailors the interest rate to each loan. The decision to give a loan and the rate of interest thereon are carefully assessed on a case by case basis, based on multiple factors which may include the Borrower's cashflows (past, current and projected), Borrower's other financial commitments, the Borrower's credit record, or other financial guarantees etc. such information is gathered based on information provided by the Borrower, credit reports, and market intelligence.

Repayment Schedule

Installment Number and Date	**Outstanding Principal (in INR)**	**EMI Principal Component (in INR)**	**EMI Interest Component (in INR)**	**Total EMI (in INR)**

1. The providing of the Loan by the Lenders to the Borrower is subject to the prudential norms applicable to the Lenders, as may be determined by the Lenders in accordance with, or as may be specified by the applicable guidelines, rules and regulations prescribed by RBI and any internal policy of the Lenders (to the extent such policy does not conflict with and applicable guidelines, rules or regulations prescribed by the RBI).

2. **Illustration with respect to SMA/NPA Classification**
   i. If the Repayment Date with respect to the Facility falls on March 31 , and the relevant Outstanding st Dues payable on such date is not received in full on such Repayment Date, before the Lenders run the day-end process with respect to classification of their borrower accounts for the Repayment Date, the date of overdue shall be March 31st

ii. In the event of the Facility continues to remain overdue, then the loan account shall be tagged as SMA-1 upon running day-end process on the 30 day from March 31 i.e. upon completion of 30 days of th st the Facility being continuously overdue. Accordingly, the date of SMA-1 classification for that account shall be 30th April

iii. Similarly, if the Facility continues to remain overdue after it being classified as SMA-1, it shall be tagged as SMA-2 upon running day-end process on the 60th day from March 31st i.e. on 30th May.

iv. In the event of the Facility continuing to remain overdue further, it shall become classified as NPA upon running day-end process on the 90th day from March 31st i.e. on 29th June.

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SCHEDULE 2

Key Facts Statement

Part 1 (Interest rate and fees/charges)

Date :
Applicant Name :
Loan Amount including Fee/charges (in Rupees):
Name of Lenders: Newtap Finance Private Limited and YES BANK Limited

Key Facts Statement
Part 1(Interest rate and fees/charges)

Date of KFS			This Key Fact Statement is valid for 3 days from the date of KFS.				
1	**Loan proposal / account No.**		**Type of Loan**				
2	**Loan Loan amount (in Rupees)**						
3	**Disbursement schedule** (i) Disbursement in stages or 100% upfront. (ii) If it is stage wise, mention the clause of loan agreement having relevant details						
4	**Loan term (year/months/days)**						
5	**Instalment details**						
Type of instalments		Number of EPIs	EPI (₹)	Commencement of repayment, post sanction			
Monthly Fixed Instalments							
6	**Interest rate (%) and type (fixed or floating or hybrid)**						
7	**Additional Information in case of Floating rate of interest**						
Reference Benchmark	Benchmark rate (%) (B)	Spread (%) (S)	Final rate (%) R = (B)+ (S)	Reset periodicity. (Months)		Impact of change in the reference benchmark (for 25 bps change in 'R', change in:[3])	
				B	S	EPI (₹)	No. of EPIs
NA	NA	NA	NA	NA	NA	NA	NA
8	**Fee/ Charges**						
		Payable to the RE (A)		Payable to a third party through RE (B)			
		One-time /Recurring	Amount (in ₹) or Percentage (%) as applicable	One-time/Recurring		Amount (in ₹) or Percentage (%) as applicable (inc GST)	
(i)	Processing Fee						
(ii)	Insurance Charges						
(iii)	Valuation fees						
(iv)	Any other (please specify)						
9	**Annual Percentage Rate (APR) (%)**						
10	**Details of Contingent Charges (in ₹ or %, as applicable)**						
(i)	Penal charges, if any, in case of delayed payment						

(ii)	Other penal charges, if any	
(iii)	Foreclosure charges, if applicable	
(iv)	Charges for switching of loans from floating to fixed rate and vice versa	
(v)	Any other charges (please specify)	

Part 2 (Other Qualitative Information)

1	Clause of Loan agreement relating engagement of recovery agents	Clause 6
2	Clause of Loan agreement grievance redressal mechanis	Clause 13 and the"Process to handle customer complaints/grievance"
3	Phone number and email id of the nodal grievance redressal officer	The details of the Nodal Grievance Redressal Officers of **Yes BANK Limited** are as follows (or as updated from time to time on the website as aforesaid): Name of the Grievance Redressal Officer: Mustufa Khajurwala Email: mustufa.khajurwala@yesbank.in Call: +91 (22) 50919231 The details of the Nodal Grievance Redressal Officers of **Newtap Finance** are as follows (or as updated from time to time on the website as aforesaid): 1. Name of the Grievance Redressal Officer: Ankush Parasor Address: KP Towers, 777A, 4th Floor, 13th Main Corner, 13th Main Road, HAL 2nd Stage, Doopanahalli Indiranagar, Bengaluru, Karnataka – 560008 Email: gro@newtap.in The details of the Nodal Grievance Redressal Officers of **CRED** are as follows (or as updated from time to time on the website as aforesaid): 1. Name of the Grievance Redressal Officer/ Principal Officer: Atul Kumar Patro 2. Address: Attn: Grievance Officer, CRED, No. 769 and 770, 100 Feet Road, 12th Main, HAL 2nd Stage, Indiranagar, Bengaluru, Karnataka, India - 560038.Contact: Grievance Redressal Form https://app.cred.club/k63y/8lqxt1uy)
	Whether the loan is, or in future maybe, subject to transfer to other REs or securitisation (Yes/ No)	
5	In case of lending under collaborative lending arrangements (e.g., co-lending/ outsourcing), following additional details may be furnished:	

Name of the originating RE, along with its funding proportion	Name of the partner RE along with its proportion of funding	Blended rate of interest
Newtap Finance Private Limited ("Newtap") with 20% funding proportion	YES BANK Limited ("YBL")with 80% funding proportion	

6	In case of digital loans, following specific disclosures may be furnished:
(i) Cooling off/look-up period, in terms of RE's board approved policy, during which borrower shall not be charged any penalty on prepayment of loan	
(ii) Details of LSP acting as recovery agent and authorized to approach the borrower	Dreamplug Technologies Private Limited and its recovery agents (Please refer CRED's privacy policy for a list of its empaneled recovery agents here)For list of YES BANK's empaneled recovery agents, please refer here Newtap Finance Private Limited's recovery agents comprises of Dreamplug Technologies Private Limited & any of their agents as listed above)

Illustration for computation of APR

Annex B

Sr. No.	Parameter	Details
1	Sanctioned Loan amount (in Rupees) (Sl no. 2 of the KFS template – Part 1)	
2	Loan Term (in years/ months/ days) (Sl No.4 of the KFS template – Part 1)	
a)	No. of instalments for payment of principal, in case of non equated periodic loans	
b)	Type of EPI Amount of each EPI (in Rupees) Nos. of EPIs (e.g., no. of EMIs in case of monthly instalments)	
c)	No. of instalments for payment of capitalised interest, if any (Sl No. 5 of the KFS template – Part 1)	
d)	Commencement of repayments, post sanction (Sl No. 5 of the KFS template –Part 1)	
3	Interest rate type (fixed or floating or hybrid) (Sl No. 6 of the KFS template – Part 1)	
4	Rate of Interest (Sl No. 6 of the KFS template – Part 1)	
5	Total Interest Amount to be charged during the entire tenor of the loan as per the rate prevailing on sanction date (in Rupees)	
a)	Gap Interest (if any)	
6	Fee/ Charges payable (in Rupees)	
A	Payable to the RE (Sl No.8A of the KFS template-Part 1)	
B	Payable to third-party routed through RE (Sl No.8B of the KFS template – Part 1)	
7	Net disbursed amount (1-6) (in Rupees)	
8	Total amount to be paid by the borrower (sum of 1 and 5) (in Rupees)	
9	Annual Percentage rate- Effective annualized interest rate (in percentage) (Sl No.9 of the KFS template-Part 1)	
10	Schedule of disbursement as per terms and conditions	

11	Due date of payment of instalment and interest	

Annex C

Detailed Repayment Charges

Instalment No.	Outstanding Principal (In Rupees)	Principal (In Rupees)	Interest (In Rupees)	Instalment (In Rupees)

This repayment schedule includes interest accrued from the first date of disbursement till the first EPI payment date

Recovery Mechanism:

1. The Borrower may note that CRED (Dreamplug Technologies Private Limited) shall be the lending services provider for the Lenders and the CRED App shall be the digital lending app for all purposes.

2. The collection and recovery activities shall be carried on by the Lenders, the lending service provider in accordance with the collection code of conduct prescribed by the Lenders.

3. The Borrower may note that the collection agencies will reach out on behalf of the lending service provider and / or the Lenders at the registered contact number and/or address of the Borrower.

4. The Borrower shall note that the account shall be classified as Non-Performing Asset (NPA) as per the extant RBI Circulars/Regulations when the payment of Loan instalment (principal and/or interest) remains overdue for more than 90 days, that is, the account will be marked as NPA on the 91st day of continuous default from the original due date. To further clarify, an illustrative example of the way any account shall be classified as NPA is provided above in the loan agreement.

   Process to handle customer complaints/grievances : Customers who wish to provide feedback or send in their **c**omplaints may use the following channels :

1. Contact CRED Support through the chat-bot on the CRED App.

2. Contact CRED through the Grievance Redressal Form available at https://app.cred.club/k63y/8lqxt1uy .Please note that the Lenders have authorized CRED to handle the Borrower's grievances on their behalf. Lender 1 may, at its discretion, direct the Borrower to CRED to resolve grievances.

3. Email Lender 2 at support@newtap.in. Please note that Lender 1 has authorized Lender 2 to handle the Borrower's grievances on their behalf. Further, Lender 1 may, at its discretion, direct the Borrower to Lender 2 to resolve grievances

4. Email Lender 1 at yestouch@yesbank.in or call 18001200 (Between 8 am to 8 pm only; only critical service post 8 pm). Please note that Lender 1 has authorized Lender 2 to handle the Borrower's grievances on their behalf. Further, Lender 1 may, at its discretion, direct the Borrower to Lender 2 to resolve grievances.

In case the complaint is not resolved within the given time or if he/she is not satisfied with the solution provided by the Lenders or Lending Service Provider within 30 days of their receiving the complaint, the Borrower can approach the Nodal Grievance Redressal Officer of any Party. The name and contact of such officer for each Party is as provided below. The details are also provided in the respective Party's websites: YBL Digital lending link (for Lender 1), www.newtap.in/grievanceredressal (for the Lender 2) and http://cred.club (for CRED).

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SCHEDULE 3

RBI ILLUSTRATIONS FOR NPAs

1. The Borrower hereby agrees and acknowledges that the Facility shall be subject to the guidelines issued by Reserve Bank of India ("**RBI**"), from time to time, and that in case of an failure/default/delay in payment/ repayment/ reimbursement, as the case may be, of any interest/ commission/ principal amounts under the Facility, the Facility may be classified as Special Mention Account ("**SMA**") and/ or Non Performing Asset ("**NPA**") in accordance with the guidelines issued by the RBI, from time to time.

2. The Borrower further agrees, acknowledges and confirms that immediately upon any default, the account of the Borrower may be classified as SMA as follows, subject to the guidelines issued by RBI, from time to time:

In case of the Facility is not sanctioned on revolving basis		**In case of the Facility is sanctioned on revolving basis**	
SMA Sub-categories	**Basis for classification – Principal or interest/ commission payment or any other amount wholly or partly overdue**	**SMA Sub-categories**	**Basis for classification – Outstanding balance remains continuously in excess of the sanctioned limit or drawing power, whichever is lower, for a period of:**
SMA-0	Upto 30 days	-	
SMA-1	More than 30 days and upto 60 days	SMA-1	More than 30 days and upto 60 days
SMA-2	More than 60 days and upto 90 days	SMA-2	More than 60 days and upto 90 days

Further, the Borrower is aware that the account of the Borrower may be classified as NPA in accordance with RBI Master Circular - Prudential norms on Income Recognition, Asset Classification and Provisioning pertaining to Advances, as amended from time to time and other applicable guidelines issued by RBI, from time to time.

3 . The Borrower irrevocably and unconditionally agrees and confirms that it shall not raise any dispute regarding the classification of the Facility/Borrower's account as SMA and/ or NPA in accordance with the above and as per guidelines issued by RBI, from time to time.

Illustrative movement of an account to SMA category to NPA category based on delay I non-payment of dues and subsequent upgradation to Standard category at day end

Due date of payment	**Payment date**	**Payment Covers**	**Age of oldest dues in day**	**SMA /NPA Categorization on**	**SMA since date / SMA Class date**	**NPA categorize action**	**NPA Date**
01.01.2022	01.01.2022	Entire dues up to 01.01.2022	0	Nil	NA	NA	NA
01.02.2022	01.02.2022	Partly paid dues of 01.02.2022	1	SMA-0	01.02.2022	NA	NA
01.02.2022	01.02.2022	Partly paid dues of 01.02.2022	2	SMA-0	01.02.2022	NA	NA

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Due date of payment	Payment date	Payment Covers	Age of oldest dues in day	SMA /NPA Categorization on	SMA since date / SMA Class date	NPA categorize action	NPA Date
01.03.2022		Dues of 01.02.2022 not fully paid 01.03.2022 is also due at EOD 01.03.2022	29	SMA-0	01.02.2022	NA	NA
		Dues of 01.02.2022 not fully paid, Due for 01.03.2022 not paid at EOD 01.03.2022	1	SMA-0	01.03.2022	NA	NA
		No payment of full dues of 01.02.2022 and 01.03.2022 at EOD 03.03.2022	31	SMA-1	1.02.2022/ 3.03.2022	NA	NA
		Dues of 01.02.2022 fully paid , Due for 01.03.2022 not fully paid at EOD 1.03.2022	1	SMA-0	01.03.2022	NA	NA
01.04.2022		No payment of dues of 01.02.2022, 01.03.2022 an amount due on 01.4.2022 at EOD 1.04.2022	60	SMA-1	1.02.2022/ 3.03.2022	NA	NA
		No payment of dues of 01.02.2022 till 01.04.2022 at EOD 02.04.2022	61	SMA-2	01.02.2022 /02.04.2022	NA	NA
01.05.2022		No payment of dues of 01.02.2022 till 01.05.22 at EOD 01.05.2022	90	SMA-2	01.02.2022 /02.04.2022	NA	NA
		No payment of dues of 01.02.2022 till 01.05.22 at EOD 02.05.2022	91	NPA	Na	NPA	02.05.2022
01.06.2022	01.06.2022	Fully Paid dues of 01.02.2022 at EOD 01.06.2022	93	NPA	Na	NPA	02.05.2022
01.07.2022	01.07.2022	Paid entire dues of 1.03.2022 & 01.04.2022 at EOD 01.07.2022	62	NPA	Na	NPA	02.05.2022
01.08.2022	01.08.2022	Paid entire dues of 1.05.2022 & 01.06.2022 at EOD 01.08.2022	32	NPA	Na	NPA	02.05.2022
01.09.2022	01.09.2022	Paid entire dues of 01.07.2022 & 01.08.2022 at EOD 1.09.2022	1	NPA	Na	NPA	02.05.2022
01.10.2022	01.10.2022	Paid entire dues of 01.09.2022 & 01.10.2022	0	Standard Account with no overdue	Na	NA	STD from 01.10.2022

The Borrower understands that the aforesaid few examples are illustrative and not exhaustive in nature covering common scenarios, and that, the IRACP norms and clarifications provided by RBI on the subjects referred above will prevail.